

ORIGINAL

CIVIL RIGHTS COMPLAINT
42 U.S.C. § 1983UNITED STATES DISTRICT COURT
EASTERN DISTRICT OF NEW YORKFILED
IN CLERK'S OFFICE
US DISTRICT COURT E.D.N.Y.

★ MAR 22 2017 ★

BROOKLYN OFFICE

Jose Pizarro 8951601897 CHEN, J.
Full name of plaintiff/prisoner ID#

Plaintiff,

GOLD, M.J. JURY DEMAND
YES ☒ NO ☐

-against-

N.Y.P.D. Comm. Bratton
P.O. Devin BAKER P.O. Joseph
Moloney Genevieve Taylor et. al.
Enter full names of defendants[Make sure those listed above are
identical to those listed in Part III.]

CV17-1694

Defendants.

I. Previous Lawsuits:

- A. Have you begun other lawsuits in state or federal court dealing with the same facts involved in this action or otherwise relating to your imprisonment? Yes () No (☒)
- B. If your answer to A is yes, describe each lawsuit in the space below (If there is more than one lawsuit, describe the additional lawsuits on another piece of paper, using the same outline.)

1. Parties to this previous lawsuit:

Plaintiffs: N/ADefendants: N/A2. Court (if federal court, name the district;
if state court, name the county) N/A3. Docket Number: N/A

4. Name of the Judge to whom case was assigned: N/A

5. Disposition: (for example: Was the case dismissed? Was it appealed? Is it still pending?) N/A

6. Approximate date of filing lawsuit: N/A

7. Approximate date of disposition: N/A

II. Place of Present Confinement: N/A

A. Is there a prisoner grievance procedure in this institution? Yes (☒) No ()

B. Did you present the facts relating to your complaint in the prisoner grievance procedure? Yes (☒) No ()

C. If your answer is YES,

1. What steps did you take? Non-grievable
issue

2. What was the result? N/A
Non-grievable issue

D. If your answer is NO, explain why not _____

E. If there is no prison grievance procedure in the institution, did you complain to prison authorities? Yes () No (☒)

F. If your answer is YES,

1. What steps did you take? N/A

2. What was the result? N/A

IV. DEFENDANT INFORMATION

To the best of your ability, provide the following information for each defendant. If the correct information is not provided, it could delay or prevent service of the complaint on the defendant. Make sure that the defendants listed below are identical to those listed in the caption. Attach additional pages as necessary.

Defendant 1:

Bill Bratton
 First Name Last Name Shield #
Former N.Y.P.D Comm.
 Current Job Title (or other identifying information)
One Police Plaza
 Current Work Address
NYC N.Y.
 County, City State Zip Code

Defendant 2:

Devin Baker 28634
 First Name Last Name Shield #
Police officer N.Y.P.D
 Current Job Title (or other identifying information)
191 Union St.
 Current Work Address
Bklyn N.Y. 11231-3003
 County, City State Zip Code

Defendant 3:

Joseph Moloney 10143
 First Name Last Name Shield #
Police officer N.Y.P.D
 Current Job Title (or other identifying information)
191 Union St
 Current Work Address
Bklyn N.Y. 11231-3003
 County, City State Zip Code

Defendant 4:

John Doe
 First Name Last Name Shield #
N.Y.P.D Comm.
 Current Job Title (or other identifying information)
One Police Plaza
 Current Work Address
NYC N.Y.
 County, City State Zip Code

III. Parties:

(In item A below, place your name in the first blank and place your present address in the second blank. Do the same for additional plaintiffs, if any.)

A. Name of plaintiff Jose Pizarro 895/601897
Address 18-18 Hazen St. East Elmhurst N.Y. 11370

(In item B below, place the full name and address of each defendant)

B. List all defendants' names and the addresses at which each defendant may be served. Plaintiff must provide the address for each defendant named.

Defendant No. 15

Genevieve Taylor
444 Columbia St Apt 6 Fl
BKLYN, N.Y. 11231

Defendant No. 6

D.O.C. Comm. Joseph Ponte
Riker Island
EAST Elmhurst N.Y. 11370

Defendant No. 37

Kenneth P. Thompson
District Attorney
320 Jay St BKLYN N.Y. 11201

Defendant No. 48

Daniel Derby BDS
177 Livingston St 5th Fl
BKLYN NY 11201

Defendant No. 99

Harvey A Herbert Esq.
142 Jerusalem St suite 8C
BKLYN, N.Y. 11201

[Make sure that the defendants listed above are identical to those listed in the caption on page 1].

III. Parties:

(In item A below, place your name in the first blank and place your present address in the second blank. Do the same for additional plaintiffs, if any.)

A. Name of plaintiff Jose Pizarro 895/60/897
 Address 18-18 Hazen St. EAST Elmhurst NY 11370

(In item B below, place the full name and address of each defendant)

B. List all defendants' names and the addresses at which each defendant may be served. Plaintiff must provide the address for each defendant named.

Defendant No. 10

Jane Doe ADA white female
350 JAY St.
BKlyn NY 11201

Defendant No. 11

Jamie Burke BDS
177 Livingston St
Bklyn N.Y. 11201

Defendant No. 12

John/Jane Doe Warden
G.R.V.C
0909 Hazen St EAST Elmhurst NY 11370

Defendant No. 13

John/Jane Doe Warden
O.B.C.C.
08-08-HAZEN St EAST Elmhurst NY 11370

Defendant No. 14

John/Jane Doe Warden
A.M.K.C.
18-18 HAZEN St. EAST Elmhurst NY 11370

[Make sure that the defendants listed above are identical to those listed in the caption on page 1].

IV. DEFENDANT INFORMATION

To the best of your ability, provide the following information for each defendant. If the correct information is not provided, it could delay or prevent service of the complaint on the defendant. Make sure that the defendants listed below are identical to those listed in the caption. Attach additional pages as necessary.

Defendant 15 John/Jane Doe Warden
 First Name Last Name Shield #
WARDEN
 Current Job Title (or other identifying information)
N.I.C. ~~Rock~~ Rikers Island
 Current Work Address
EAST Elmhurst NY 11370
 County, City State Zip Code

Defendant 16 Bill DeBalsio
 First Name Last Name Shield #
MAYOR of New York City
 Current Job Title (or other identifying information)
CITY HALL
 Current Work Address
 County, City State Zip Code

Defendant 17 Cuomo
 First Name Last Name Shield #
GOVERNOR of New York
 Current Job Title (or other identifying information)
 Current Work Address
Albany N.Y.
 County, City State Zip Code

Defendant 4:
 First Name Last Name Shield #
 Current Job Title (or other identifying information)
 Current Work Address
 County, City State Zip Code

IV. Statement of Claim:

(State briefly and concisely, the facts of your case. Include the date(s) of the event(s) alleged as well as the location where the events occurred. Include the names of each defendant and state how each person named was involved in the event you are claiming violated your rights. You need not give any legal arguments or cite to cases or statutes. If you intend to allege a number of related claims, number and set forth each claim in a separate paragraph. You may use additional 8 1/2 by 11 sheets of paper as necessary.)

on Feb 17, 2016 I was falsely arrested and falsely accused of Harassment by Vincent Taylor. I spent eight months on Rikers Island before the case was dismissed. I have been attack by inmates and officers since my incarceration. Poor medical care have been given to me which resulted in a collapse lung. Access to law library has been denied to me.

IV.A

If you are claiming injuries as a result of the events you are complaining about, describe your injuries and state what medical treatment you required. Was medical treatment received?

Since my incarceration on Rikers Island I have been attack by inmates and officers. I ~~also~~ have metal plate and screws in my knee after having major surgery. My knee collapsed and had a chest tube in my chest from the result of poor medical treatment by D.O.C. I'm suffering from mental health issues such as depression, insomnia and Post Traumatic Stress Disorder in which I'm receiving treatment and medication for.

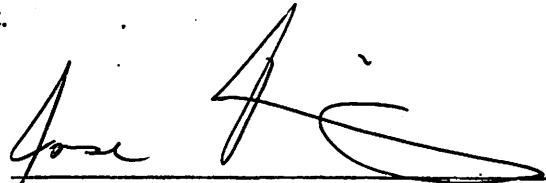
V. Relief:

State what relief you are seeking if you prevail on your complaint.

Plaintiff seeks damages of Pain and Suffering in its individual capacity and official capacity from each defendant for Five (5) million dollars. Plaintiff also seeks Punitive damages in its individual capacity and official capacity from each defendant for (40) four hundred million dollars. For the sum of (470) four hundred Seventy million dollars.

I declare under penalty of perjury that on 3/13/2017, I delivered this
(Date)
complaint to prison authorities to be mailed to the United States District Court for the Eastern
District of New York.

Signed this 13 day of March, 2017. I declare under penalty of
perjury that the foregoing is true and correct.


Signature of Plaintiff

A.M.K.C.
Name of Prison Facility

18-18 Hazen St.
East Elmhurst NY 11370

Address

8951601897
Prisoner ID#

JS 44 (Rev. 1/2013)

CIVIL COVER SHEET

The JS 44 civil cover sheet and the information contained herein neither replace nor supplement the filing and service of pleadings or other papers as required by law, except as provided by local rules of court. This form, approved by the Judicial Conference of the United States in September 1974, is required for the use of the Clerk of Court for the purpose of initiating the civil docket sheet. (SEE INSTRUCTIONS ON NEXT PAGE OF THIS FORM.)

I. (a) PLAINTIFFS

Jose Pizarro, #8951601897, 18-18 Hazen Street, East Elmhurst, NY 11370

(b) County of Residence of First Listed Plaintiff
(EXCEPT IN U.S. PLAINTIFF CASES)

(c) Attorneys (Firm Name, Address, and Telephone Number)
Pro Se: See Above

DEFENDANTS

NYPD Comm. Bratton, et al (please see attached list for all defendants)

County of Residence of First Listed Defendant
(IN U.S. PLAINTIFF CASES ONLY)

NOTE: IN LAND CONDEMNATION CASES, USE THE LOCATION OF THE TRACT OF LAND INVOLVED.

Attorneys (If Known)

II. BASIS OF JURISDICTION (Place an "X" in One Box Only)

- ☐ 1 U.S. Government Plaintiff
- ☒ 3 Federal Question
(U.S. Government Not a Party)
- ☐ 2 U.S. Government Defendant
- ☐ 4 Diversity
(Indicate Citizenship of Parties in Item III)

III. CITIZENSHIP OF PRINCIPAL PARTIES (Place an "X" in One Box for Plaintiff and One Box for Defendant)

- Citizen of This State ☐ PTF ☐ DEF
- Citizen of Another State ☐ 2 ☐ 2 Incorporated or Principal Place of Business In This State ☐ 4 ☐ 4
- Citizen or Subject of a Foreign Country ☐ 3 ☐ 3 Foreign Nation ☐ 6 ☐ 6

IV. NATURE OF SUIT (Place an "X" in One Box Only)

CONTRACT	TORTS	FORFEITURE/PENALTY	BANKRUPTCY	OTHER STATUTES
☐ 110 Insurance ☐ 120 Marine ☐ 130 Miller Act ☐ 140 Negotiable Instrument ☐ 150 Recovery of Overpayment & Enforcement of Judgment ☐ 151 Medicare Act ☐ 152 Recovery of Defaulted Student Loans (Excludes Veterans) ☐ 153 Recovery of Overpayment of Veteran's Benefits ☐ 160 Stockholders' Suits ☐ 190 Other Contract ☐ 195 Contract Product Liability ☐ 196 Franchise	PERSONAL INJURY ☐ 310 Airplane ☐ 315 Airplane Product Liability ☐ 320 Assault, Libel & Slander ☐ 330 Federal Employers' Liability ☐ 340 Marine ☐ 345 Marine Product Liability ☐ 350 Motor Vehicle ☐ 355 Motor Vehicle Product Liability ☐ 360 Other Personal Injury ☐ 362 Personal Injury - Medical Malpractice	☐ 365 Personal Injury - Product Liability ☐ 367 Health Care/Pharmaceutical Personal Injury Product Liability ☐ 368 Asbestos Personal Injury Product Liability ☐ 371 Truth in Lending ☐ 380 Other Personal Property Damage ☐ 385 Property Damage Product Liability	☐ 625 Drug Related Seizure of Property 21 USC 881 ☐ 690 Other	☐ 422 Appeal 28 USC 158 ☐ 423 Withdrawal 28 USC 157 PROPERTY RIGHTS ☐ 820 Copyrights ☐ 830 Patent ☐ 840 Trademark
REAL PROPERTY ☐ 210 Land Condemnation ☐ 220 Foreclosure ☐ 230 Rent Lease & Ejectment ☐ 240 Torts to Land ☐ 245 Tort Product Liability ☐ 290 All Other Real Property	CIVIL RIGHTS ☐ 440 Other Civil Rights ☐ 441 Voting ☐ 442 Employment ☐ 443 Housing/Accommodations ☐ 445 Amer. w/Disabilities - Employment ☐ 446 Amer. w/Disabilities - Other ☐ 448 Education	PRISONER PETITIONS Habeas Corpus: ☐ 463 Alien Detainee ☐ 510 Motions to Vacate Sentence ☐ 530 General ☐ 535 Death Penalty Other: ☒ 540 Mandamus & Other ☐ 550 Civil Rights ☐ 555 Prison Condition ☐ 560 Civil Detainee - Conditions of Confinement	LABOR ☐ 710 Fair Labor Standards Act ☐ 720 Labor/Management Relations ☐ 740 Railway Labor Act ☐ 751 Family and Medical Leave Act ☐ 790 Other Labor Litigation ☐ 791 Employee Retirement Income Security Act	☐ 861 HIA (1395ff) ☐ 862 Black Lung (923) ☐ 863 DIWC/DIWW (405(g)) ☐ 864 SSID Title XVI ☐ 865 RSI (405(g)) SOCIAL SECURITY ☐ 870 Taxes (U.S. Plaintiff or Defendant) ☐ 871 IRS—Third Party 26 USC 7609 FEDERAL TAX SUITS
				☐ 375 False Claims Act ☐ 400 State Reapportionment ☐ 410 Antitrust ☐ 430 Banks and Banking ☐ 450 Commerce ☐ 460 Deportation ☐ 470 Racketeer Influenced and Corrupt Organizations ☐ 480 Consumer Credit ☐ 490 Cable/Sat TV ☐ 850 Securities/Commodities/Exchange ☐ 890 Other Statutory Actions ☐ 891 Agricultural Acts ☐ 893 Environmental Matters ☐ 895 Freedom of Information Act ☐ 896 Arbitration ☐ 899 Administrative Procedure Act/Review or Appeal of Agency Decision ☐ 950 Constitutionality of State Statutes

V. ORIGIN (Place an "X" in One Box Only)

- ☒ 1 Original Proceeding ☐ 2 Removed from State Court ☐ 3 Remanded from Appellate Court ☐ 4 Reinstated or Reopened ☐ 5 Transferred from Another District (specify) ☐ 6 Multidistrict Litigation

VI. CAUSE OF ACTION

Cite the U.S. Civil Statute under which you are filing (Do not cite jurisdictional statutes unless diversity):

Brief description of cause:
Civil Action Pursuant To 42 USC 1983

VII. REQUESTED IN COMPLAINT:

☐ CHECK IF THIS IS A CLASS ACTION UNDER RULE 23, F.R.Cv.P. DEMAND \$

CHECK YES only if demanded in complaint:
JURY DEMAND: ☐ Yes ☐ No

VIII. RELATED CASE(S) IF ANY

(See instructions):

JUDGE RANDOM/SMG

DOCKET NUMBER 16-cv-1597(CBA)(SMG)

DATE
03/22/2017

SIGNATURE OF ATTORNEY OF RECORD

FOR OFFICE USE ONLY

RECEIPT # AMOUNT APPLYING IFP JUDGE MAG. JUDGE

CERTIFICATION OF ARBITRATION ELIGIBILITY

Local Arbitration Rule 83.10 provides that with certain exceptions, actions seeking money damages only in an amount not in excess of \$150,000, exclusive of interest and costs, are eligible for compulsory arbitration. The amount of damages is presumed to be below the threshold amount unless a certification to the contrary is filed.

I, _____, counsel for _____, do hereby certify that the above captioned civil action is ineligible for compulsory arbitration for the following reason(s):

- ☐ monetary damages sought are in excess of \$150,000, exclusive of interest and costs,
- ☐ the complaint seeks injunctive relief,
- ☐ the matter is otherwise ineligible for the following reason

DISCLOSURE STATEMENT - FEDERAL RULES CIVIL PROCEDURE 7.1

Identify any parent corporation and any publicly held corporation that owns 10% or more of its stocks:

RELATED CASE STATEMENT (Section VIII on the Front of this Form)

Please list all cases that are arguably related pursuant to Division of Business Rule 50.3.1 in Section VIII on the front of this form. Rule 50.3.1 (a) provides that "A civil case is "related" to another civil case for purposes of this guideline when, because of the similarity of facts and legal issues or because the cases arise from the same transactions or events, a substantial saving of judicial resources is likely to result from assigning both cases to the same judge and magistrate judge." Rule 50.3.1 (b) provides that "A civil case shall not be deemed "related" to another civil case merely because the civil case: (A) involves identical legal issues, or (B) involves the same parties." Rule 50.3.1 (c) further provides that "Presumptively, and subject to the power of a judge to determine otherwise pursuant to paragraph (d), civil cases shall not be deemed to be "related" unless both cases are still pending before the court."

NY-E DIVISION OF BUSINESS RULE 50.1(d)(2)

- 1.) Is the civil action being filed in the Eastern District removed from a New York State Court located in Nassau or Suffolk County? NO
- 2.) If you answered "no" above:
- a) Did the events or omissions giving rise to the claim or claims, or a substantial part thereof, occur in Nassau or Suffolk County? NO
- b) Did the events of omissions giving rise to the claim or claims, or a substantial part thereof, occur in the Eastern District? YES

If your answer to question 2 (b) is "No," does the defendant (or a majority of the defendants, if there is more than one) reside in Nassau or Suffolk County, or, in an interpleader action, does the claimant (or a majority of the claimants, if there is more than one) reside in Nassau or Suffolk County? _____

(Note: A corporation shall be considered a resident of the County in which it has the most significant contacts).

BAR ADMISSION

I am currently admitted in the Eastern District of New York and currently a member in good standing of the bar of this court.

☐ Yes ☐ No

Are you currently the subject of any disciplinary action (s) in this or any other state or federal court?

☐ Yes (If yes, please explain) ☐ No

I certify the accuracy of all information provided above.

Signature: _____

Defendants:

1. Bill Bratton
2. Devin Baker, Shield #28634
3. Joseph Moloney, Shield #10143
4. John Doe
5. Geneieve Taylor
6. D.O.C. Comm. Joseph Ponte
7. Kenneth P. Thompson
8. Daniel Derby BDS
9. Harvey A. Herbert, Esq.
10. Jane Doe ADA White Female
11. Jamie Burke BDS
12. John/Jane Doe Warden (G.R.V.C.)
13. John/Jane Doe Warden (O.B.C.C.)
14. John/Jane Doe Warden (A.M.K.C.)
15. John/Jane Doe Warden (N.I.C.)
16. Bill DeBlasio
17. Cuomo